

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jeffrey Mulinelli (S)	Team: Squad #08	CCRB Case #: 201408487	☐ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 08/15/2014 9:00 PM	Location of Incident: West 129th Street and Lenox Avenue	18 Mo. SOL 2/15/2016	Precinct: 32		
Date/Time CV Reported Tue, 08/19/2014 12:17 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 08/19/2014 12:17 PM		
Complainant/Victim	Type	Home Address			
Subject Officer(s)	Shield	TaxID	Command		
1. POM Christophe Wintermute	03805	953574	032 PCT		
Witness Officer(s)	Shield No	Tax No	Cmd Name		
1. POF Margaret Bauert	08181	952451	032 PCT		
Officer(s)	Allegation	Investigator Recommendation			
A . POM Christophe Wintermute	Discourtesy: PO Christopher Wintermute spoke discourteously to § 87(2)(b)	A . Unsubstantiated			

Case Summary

On August 15, 2014, at approximately 9:00 p.m., § 87(2)(b) parked his car on the corner of West 129th Street and Lenox Avenue in Manhattan. As he exited his vehicle, § 87(2)(b) was approached by PO Christopher Wintermute and PO Margaret Bauert, both of the 32nd Precinct. PO Wintermute told § 87(2)(b) that he was parked illegally, and the two debated the issue briefly. PO Wintermute allegedly said, “I’m the fucking cop here. I’m the fucking cop. You parked illegally.” **(Allegation A)** § 87(2)(b) told PO Wintermute that he was going to file a complaint against him, and PO Wintermute allegedly responded, “I don’t give a fuck.” **(Allegation A)**

Mediation, Civil, and Criminal Histories

On January 10, 2015, a NOC inquiry was filed with the Office of the New York City Comptroller. Its results will be added to the case file upon receipt.

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b) originally opted to mediate this complaint. He later declined to participate in the mediation session, and the case was returned for an investigation on December 8, 2014.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) [encl. A2]
- This is the first CCRB complaint filed against PO Wintermute during his 2 year tenure. [encl. A1]

Investigative Findings and Recommendations

Allegation A) Discourtesy - Word: PO Christopher Wintermute spoke discourteously to

§ 87(2)(b)

§ 87(2)(b) testified that, after he parked his car, PO Wintermute told him that he was parked illegally. [encl. C1-C5] § 87(2)(b) told PO Wintermute that he was parked legally, and PO Wintermute responded, “I’m the fucking cop here. I’m the fucking cop. You’re parked illegally.” § 87(2)(b) informed PO Wintermute that he intended to file a complaint against him. PO Wintermute said, “I don’t give a fuck.”

PO Wintermute testified that he observed § 87(2)(b) park his car on the date of the incident. [encl. D7-D12] He approached § 87(2)(b) and informed him that he was parked illegally. § 87(2)(b) argued that the parking space was legal, and he seemed agitated. PO Wintermute told § 87(2)(b) that he would not issue him a summons, but the next traffic officer to pass by may write a ticket. PO Wintermute did not say, “I’m the fucking cop here. I’m the fucking cop. You parked illegally.” § 87(2)(b) became irate and was emoting and gesturing with his hands as he spoke.

According to PO Wintermute, PO Bauert grabbed PO Wintermute by the arm and advised that they walk away from § 87(2)(b). § 87(2)(b) followed the officers, and he continued “ranting and raving”, stating that PO Wintermute and PO Bauert were “white cops in Harlem who don’t respect black people.” § 87(2)(b) did not inform PO Wintermute that he planned to file a complaint against him. PO Wintermute did not say, “I don’t give a fuck,” at any time during the incident.

PO Bauert testified that she and PO Wintermute advised § 87(2)(b) that he parked in the crosswalk. [encl. D1-D6] § 87(2)(b) shouted and screamed at PO Wintermute, at which point PO Bauert told PO Wintermute that § 87(2)(b) was “a little nutty” and advised that they walk away. PO Bauert did not hear PO Wintermute say, “I’m the fucking cop here.”

As the officers walked away, § 87(2)(b) followed them. § 87(2)(b) said, “You two white cops in Harlem. You don’t know how to treat black people.” He informed PO Wintermute and PO Bauert that he was going to file a complaint, but neither officer responded. PO Wintermute did not say, “I don’t give a fuck.”

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **unsubstantiated**.

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date